GOVERNMENT OF WEST BENGAL
OFFICE OF THE DISTRICT INSPECTOR OF SCHOOLS
PRIMARY EDUCATION PURBA BARDHAMAN
P.O. + DIST – PURBA BARDHAMAN * PIN – 713101
Email id:- dispeburdwan@gmail.com

Memo No. 448 Dated: 13.8.26

To
The Head of the Institution / Secretary / Managing Authority
_____ School
Address: _____

Subject: Seeking Explanation regarding functioning of the Unaided Private Primary & Primary with High Schools without valid No Objection Certificate (NOC)/Certificate of Recognition from the competent authority.

Sir/Madam,

It has come to the notice of the competent authority that your school, situated at _____, is presently conducting educational activities/classes and functioning as a Private Primary School/Primary School with High School without obtaining a valid NOC and/or Certificate of Recognition from the competent authority, as required under the applicable rules and regulations.

In view of the facts and circumstances stated above, you are hereby directed to **explain why appropriate statutory action should not be initiated against the school/management for functioning without a valid NOC/Certificate of Recognition** issued by the competent authority.

You are specifically required to explain:

a) Why the school has been functioning/conducting classes without a valid NOC/Certificate of Recognition from the competent authority.

b) Whether the school has ever applied for recognition/NOC under Section 18 of the RTE Act, 2009 read with Rule 10 of the West Bengal RTE Rules, 2012. If yes, furnish the application number, date of application and documentary evidence.

c) If no application has been made, state the specific reasons for not applying for the requisite NOC/Certificate of Recognition.

d) Why appropriate statutory action will not be initiated under Section 18(5) of the RTE Act, 2009, including imposition of a fine which may extend to ₹1,00,000/-, together with a further fine of ₹10,000/- per day for every day during which the contravention continues, by the competent authority.

Now you are hereby directed to submit your written explanation reply along with documentary evidence to the office of the undersigned through the concerned Sub-Inspector of Schools (Circle) within 17/08/2026.

The following documents shall invariably be enclosed with the reply:

1. Copy of valid NOC/Certificate of Recognition, if available;
2. Total No. of students admitted & total No. of teachers working at the date of reply;
3. Copy of application for NOC/recognition & acknowledgement/receipt, if already submitted;
4. Any other document claimed by the school as proof of lawful authorization to function.

In the event of failure to submit the explanation within the stipulated period, or if the explanation submitted is found unsatisfactory, statutory action will be imposed under Section 18 of the RTE Act, 2009 and other applicable provisions, without further correspondence to the school.

13/8/26
District Inspector of Schools (PE)
Purba Bardhaman

13/8/26
District Inspector of Schools (SE)
Purba Bardhaman

Memo No. 448/1/3 Date 13.8.26

Copy forwarded for information and necessary action to:

1. The Commissioner of School Education, Government of West Bengal, for information, if required.
2. The Addl. District Magistrate (Education), Purba Bardhaman.
3.-46 The all concerned Sub-Inspector of Schools (Circle), Purba Bardhaman, with a direction to serve the notice upon the concerned school and submit a report regarding service and subsequent compliance.
47. Office Copy.

13/8/26
District Inspector of Schools (PE)
Purba Bardhaman

13/8/26
District Inspector of Schools (SE)
Purba Bardhaman